

25CV01513 Louis Orozco v. Phillip Andrew Decker, et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-04-22

Motion: Motions to Compel (4)

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Case Number

25CV01513

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 04/22/2026 - 10:00

Nature of Proceedings

Motions to Compel (4)

Tentative Ruling

For Plaintiff Louis Orozco: Olivier A. Taillieu, Elizabeth A. Hernandez, BD&J, P.C.

For Defendants Phillip Andrew Decker and Unico Engineering, Inc.: Matthew Banashek, Michael W. Irving, Banashek Irving & McNutt, LLP

RULING

For the reasons stated herein, the motion of Plaintiff to compel further responses to requests for admission, set two, to Defendant is granted. On or before May 8, 2026, Defendant Phillip Andrew Decker shall serve verified, code compliant further responses to Plaintiff's set one requests for admission nos. 13, 14, 15, 16, 19, 20, 25, 26, 27, 28, 32, 33, and 34, without the objections overruled herein except as to those based on privilege.

For the reasons stated herein, the motion of Plaintiff to compel further responses to for interrogatories, set two, to Defendant is granted. On or before May 8, 2026, Defendant Phillip Andrew Decker shall serve verified, code compliant further responses to Plaintiff's set one form interrogatory no. 17.1, as to requests for admission nos. 13, 14, 15, 16, 19, 20, 25, 26, 27, 28, 32, 33, and 34, without the objections overruled herein except as to those based on privilege.

For the reasons stated herein, the motion of Plaintiff to compel further responses to requests for production of documents, set two, to Defendant Phillip Andrew Decker is ordered off-calendar.

For the reasons stated herein, the motion of Defendant Phillip Andrew Decker to compel Plaintiff to serve further responses to requests for admission nos. 7, 8, and 9, and concurrently served form interrogatory no. 17.1, is continued to May 20, 2026. On or before April 29, 2026, Defendant shall pay filing and other fees in accordance with the Court's ruling herein. On or before May 6, 2026, Defendant shall file and serve notice of payment of filing fees identifying the motion(s) for which fees have been paid and for which adjudication is sought.

Background

As alleged in the complaint of Plaintiff Louis Orozco:

On March 29, 2024, Plaintiff was on his bicycle traveling eastbound on Hollister Avenue when, at the same time and place, Phillip Andrew Decker, while in the course and scope of his employment with Unico Engineering Inc., (Unico) was operating a vehicle and exiting a driveway onto westbound Hollister Avenue. (Complaint, ¶ GN-1.) As Defendant Decker's vehicle turned onto Hollister Avenue, its left front corner struck the rear tire of Plaintiff's bicycle causing Plaintiff to fall to the ground and suffer severe injuries and damages. (Ibid.)

Plaintiff filed their complaint against Defendants Decker and Unico on March 11, 2025, alleging two causes of action: (1) general negligence; and (2) motor vehicle.

On May 1, 2025, Defendants each and separately filed their answers to Plaintiff's complaint, generally denying its allegations and asserting affirmative defenses.

On February 18, 2026, Plaintiff filed: (1) a motion for an order compelling Defendant Decker to provide further responses to set two request for admissions, nos. 13, 14, 15, 16, 19, 20, 25, 26, 27, 28, 32, 33, and 34 (the RFA Motion); (2) a motion for an order compelling Defendant Decker to provide further responses to set two form interrogatories, no. 17.1 (the FI Motion); and (3) a motion for an order compelling Defendant Decker to provide further responses to set two requests for production of documents, nos. 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 28, 29, 30, 32, 33, 34, 35, 36, and 38 (the RFP Motion) (collectively, the Plaintiff Discovery Motions).

The Plaintiff Discovery Motions are each supported by separately filed declarations of Plaintiff's counsel, Elizabeth A. Hernandez (attorney Hernandez), which contain the same or substantially similar information and evidence. The Court will, where appropriate, refer to those declarations collectively.

Attorney Hernandez states that on November 18, 2025, Plaintiff served Decker with Plaintiff's set two form interrogatories (the FI), set two requests for admission (the RFA), and set two requests for production of documents (the RFP). (Hernandez Decs., ¶ 2 & exhibits 1.) Decker served their responses to the FI, the RFA, and the RFP on January 2, 2026. (Hernandez Decs., ¶ 3 & exhibits 2.)

On January 27, 2026, attorney Hernandez sent a meet and confer letter to counsel for Decker, identifying deficiencies in Decker's responses to the FI, the RFA, and the RFP, and requesting further code compliant responses. (Hernandez Decs., ¶ 4 & exhibit 3.) On January 30, counsel for the parties participated in a meet and confer telephone conference call regarding Decker's responses, during which counsel for Decker represented that further responses would be provided as to RFA nos. 29, 30, and 31 and RFP nos. 7 and 8 only, and that no further responses to the FI would be provided. (Hernandez Decs. ¶ 5.) Plaintiff has not received any further responses to the FI, the RFA, or the RFP. (Hernandez Decs. [RFA Motion & RFP Motion] ¶ 5.)

Decker has separately filed oppositions to each of the Plaintiff Discovery Motions.

On February 24, Decker filed a motion for an order compelling Plaintiff to provide further responses to set one requests for admission, nos. 7 through 9, and a concurrently served form interrogatory no. 17.1 (the Decker Discovery Motion). Plaintiff has filed an opposition to the Decker Discovery Motion

On April 15, Plaintiff filed a notice stating that Plaintiff withdraws the RFP Motion.

Analysis:

(1) The Plaintiff Discovery Motions

(a) The RFP Motion

As Plaintiff has filed a notice withdrawing the RFP Motion, the Court will order that motion off-calendar.

(b) The RFA Motion

"A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference." (Cal. Rules of Court, rule 3.1345(c).)

For each of the RFA at issue, the separate statement submitted by Plaintiff in support of the RFA Motion must include:

"(1) The text of the request...;

"(2) The text of each response, answer, or objection, and any further responses or answers;

"(3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute;

"(4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;

“(5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and

“(6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document.” (Cal. Rules of Court, rule 3.1345(c)(1)-(6).)

To the extent Plaintiff’s separate statement fails to comply with the requirements of California Rules of Court, rule 3.1345, the Court has discretion to deny the RFA Motion. (Mills v. U.S. Bank (2008) 166 Cal.App.4th 871, 893.)

The Court’s review of the separate statement submitted by Plaintiff in support of the RFA Motion shows that the RFA identified in that motion include capitalized terms, such as “INCIDENT”, “YOU”, “UNICO ENGINEERING INC.”, and “SUBJECT VEHICLE”. (See, e.g., Sep. Stmt. at pp. 1, 5, 7 & 18.) Wholly absent from the separate statement is the text of any definitions of these capitalized terms. For all reasons discussed above, to the extent the definition of any capitalized term contained in any RFA is necessary to understand that RFA or Decker’s response, the Court has discretion to deny the RFA Motion.

A response to a request for admission “shall answer the substance of the requested admission, or set forth an objection to the particular request.” (Code Civ. Proc., § 2033.210, subd. (b).) Each answer must “[a]dmit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party”, “[d]eny so much of the matter involved in the request as is untrue”, or “[s]pecify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.” (Code Civ. Proc., § 2033.220, subd. (b)(1)-(3).) “If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Code Civ. Proc., § 2033.220, subd. (c).)

In lieu of answering the substance of an admission request, a party may object to the request by clearly setting forth the specific ground for the objection in the response. (Code Civ. Proc., §§ 2033.210, subd. (b); 2033.230, subd. (b).) “If only a part of a request for admission is objectionable, the remainder of the request shall be answered.” (Code Civ. Proc., § 2033.230, subd. (a).)

“(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

“(1) An answer to a particular request is evasive or incomplete.

“(2) An objection to a particular request is without merit or too general.” Code Civ. Proc., § 2033.290, subd. (a)(1)-(2).)

RFA nos. 13, 14, 26, 27, 28, 33, and 34:

RFA nos. 13, 14, 26, 27, 28, 33, and 34, respectively, request that Decker admit: “that PLAINTIFF was injured in the INCIDENT”; that “the costs of medical services incurred by PLAINTIFF for treatment of his injuries that arose from the INCIDENT are reasonable”; that “the medical treatment rendered to PLAINTIFF was medically necessary as a result of the INCIDENT”; that “the medical treatment rendered to PLAINTIFF was causally related to the INCIDENT”; that “the medical bills were reasonable regarding the treatment rendered to PLAINTIFF for the INCIDENT”; that “there was a device present in the SUBJECT VEHICLE at the time of the INCIDENT that recorded the location of the SUBJECT VEHICLE between 7:00 a.m. and 8:00 a.m. on March 29, 2024”; and that “there was a device present in the SUBJECT VEHICLE at the time of the INCIDENT that recorded the speed of the SUBJECT VEHICLE between 7:00 a.m. and 8:00 a.m. on March 29, 2024”. (Sep. Stmt. at pp. 1, 3, 12, 14, 16 & 19-20.)

The responses of Decker to RFA nos. 13, 14, 26, 27, and 28 include objections on the grounds that those requests call for expert opinion; are premature; and that Decker has not completed their investigation. (Sep. Stmt. at pp. 2-3, 12-14 & 16.) The responses of Decker to RFA nos. 33 and 34 include objections that those requests are vague and ambiguous as to the term “device”. (Sep. Stmt. at pp. 19 & 21.) Decker’s responses to RFA nos. 13, 14, 26, 27, 28, 33, and 34 include the following statement: “Responding Party lacks sufficient information and knowledge to admit or deny the request.” (Sep. Stmt. at pp. 2-3, 12-14, 16, 19 & 21.)

Plaintiff contends that the objections of Decker to RFA nos. 13, 14, 26, 27, 28, 33, and 34 are without merit, and that the substantive responses fail to comply with code requirements.

In their opposing separate statement, Decker contends that they are not a medical professional; that they did not observe injuries to Plaintiff at the scene; that they are not obligated to adopt Plaintiff’s injury allegations; that whether Plaintiff was injured remains a disputed fact; and that Decker did not have to conduct or state that they conducted a reasonable inquiry. For these reasons, Decker contends, their objections and substantive responses to RFA nos. 13, 14, 26, 27, 28, 33, and 34 are complete.

For the reasons discussed herein, Decker misconstrues the purpose of admission requests.

“Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.” (Code Civ. Proc., § 2033.010.)

“The instrument of requests for admissions is unique among discovery tools. Most discovery tools, like interrogatories, depositions, and document demands, are designed to uncover factual information. That, however, is not true of requests for admissions; their ‘main purpose is to set issues at rest by compelling admission of things that cannot reasonably be controverted.’ [Citation.]” (LCPFV, LLC v. Somatdary Inc. (2024) 106 Cal.App.5th 743, 755.) “For this reason, the fact that the request is for the admission of a controversial matter, or one involving complex facts, or calls for an opinion, is of no moment. If the litigant is able to make the admission, the time for making it is during discovery procedures, and not at the trial. “ (Cembrook v. Superior Court (1961) 56 Cal.2d 423, 429.)

Moreover, “[s]ince RFAs are not limited to matters within the personal knowledge of the responding party, that party has a duty to make a reasonable investigation of the facts.” (Doe v. Los Angeles County Dept. of Children & Family Services (2019) 37 Cal.App.5th 675, 691.) The scope of the “reasonable inquiry” referenced in Code of Civil Procedure section 2033.220, subdivision (c), requires an investigation of sources of information reasonably available to Decker as to the matters at issue, including information known to Decker’s attorney or designated expert, subject to any privilege that may apply. (Chodos v. Superior Court (1963) 215 Cal.App.2d 318, 323; see also Smith v. Superior Court (1961) 189 Cal.App.2d 6, 12 [general discussion in context of interrogatories].)

For the reasons discussed above, the objections of Decker to RFA nos. 13, 14, 26, 27, and 28, which include that those requests call for expert opinion and that Decker has not completed their investigation, are without merit. In addition, the assertions by Decker that they are not an automotive expert, that Decker has only a vague understanding of electronics within modern vehicles, and that Decker does not know if the vehicle Decker was driving is equipped with electronics which record certain data are, for the same reasons discussed above, insufficient to justify the objections to RFA nos. 33 and 34 on the grounds of vagueness or ambiguity. For these and all further reasons discussed above, the Court will overrule the objections of Decker to RFA nos. 13, 14, 26, 27, 28, 33, and 34, except as to those based on privilege.

As to the substantive responses of Decker to RFA nos. 13, 14, 26, 27, 28, 33, and 34, though Code of Civil Procedure section 2033.220 permits Decker to state their lack of information or knowledge, Decker must also state that they have made a reasonable inquiry, and that the information known or readily obtainable is insufficient to permit Decker to admit the matter

involved in each request. (Code Civ. Proc., § 2033.220, subd. (c).) As Decker has not included each of the statements required by Code of Civil Procedure section 2033.220 in their responses to RFA nos. 13, 14, 26, 27, 28, 33, and 34, those responses fail to comply with code requirements.

Notwithstanding that the Court has discretion to deny the RFA Motion for the reasons described above, the Court will, under the circumstances present here, exercise its discretion to consider and, for all reasons discussed above, grant the RFA Motion as to RFA nos. 13, 14, 26, 27, 28, 33, and 34. The Court will further order Decker to provide verified, code compliant further responses to those admission requests, without the objections overruled herein.

RFA nos. 15, 16, 19, 20, 25, and 32:

RFA nos. 15, 16, 19, 20, 25, and 32 request that Decker admit that: “as a result of the INCIDENT, YOU are responsible for PLAINTIFF’S bodily injuries as alleged in PLAINTIFF’S complaint”; “YOU were an agent of Defendant UNICO ENGINEERING INC. at the time of the INCIDENT”; “YOU were negligent at the time of the INCIDENT”; “YOUR negligence was the proximate cause of the INCIDENT”; “no other entity contributed to cause the INCIDENT”; and “Defendant UNICO ENGINEERING INC. is responsible for any harm caused by YOUR operation of the SUBJECT VEHICLE at the time of the INCIDENT”. (Sep. Stmt. at pp. 5, 7-8, 10-11 & 18.)

The responses of Decker to RFA nos. 15, 16, 19, 20, 25, and 32 include only objections made on the grounds that those requests are vague, ambiguous, call for legal and factual conclusions that will be determined by the trier of fact or judge and expert opinion; and are premature, among other objections which are the same or effectively the same as the objections further discussed above. (Sep. Stmt. at pp. 5, 8-11 & 18.)

The same reasoning and analysis apply. For all reasons further discussed above, the Court will consider and grant the RFA Motion as to RFA nos. 15, 16, 19, 20, 25, and 32. The Court will overrule the objections of Decker to those requests, except as to those objections based on privilege, and will order Decker to provide verified, code-compliant further responses to RFA nos. 15, 16, 19, 20, 25, and 32, without the objections overruled herein.

(c) The FI Motion

FI no. 17.1 is the only interrogatory identified in the separate statement submitted by Plaintiff in support of the FI Motion. That interrogatory relates to any response of Decker to the RFA, that is not an unqualified admission. In their opposition to the FI Motion, Decker states that “to the extent that the Court finds that [Decker] is obligated to provide further responses to [the RFA], [Decker] is willing to also serve further responses to the corresponding Form Interrogatory 17.1.” (Opp. at p. 2, l. 27-p. 3, l. 1.)

As the Court will grant the RFA Motion as to RFA nos. 13, 14, 15, 16, 19, 20, 25, 26, 27, 28, 32, 33, and 34, the Court understands the statement by Decker set forth above, as a concession that the FI Motion has some merit as to those RFA. For these and all further reasons discussed above, the Court will grant the FI Motion, and order Decker to provide verified, code compliant further responses to FI no. 17.1 as to RFA nos. 13, 14, 15, 16, 19, 20, 25, 26, 27, 28, 32, 33, and 34, only. As the separate statement submitted in support of the FI Motion shows that Decker has not raised any objection to FI no. 17.1, it is not necessary for the Court to determine whether Decker has justified any objection to the FI.

It is also the Court’s understanding, based on material included in the separate statement submitted in support of the FI Motion, that Plaintiff seeks an order compelling Decker to provide a further response to FI no. 17.1 as to RFA nos. 29 and 35. (See, e.g., Sep. Stmt. at pp. 3-4.) That separate statement fails to, among other things, set forth the response of Decker to RFA nos. 29 and 35 as required by California Rules of Court, rule 3.1345(c)(4), (5), and (6). For these and all further reasons discussed above, the Court will deny the FI Motion as to RFA nos. 29 and 35.

(2) The Decker Discovery Motion

As further detailed above, the subject of the Decker Discovery Motion are Plaintiff's responses to a set one requests for admission, nos. 7 through 9 (the Decker RFA), and form interrogatory no. 17.1 (the Decker FI).

The Decker Discovery Motion is authorized under subdivisions (a) of Code of Civil Procedure sections 2030.300 and 2033.290. The order requested in that motion is keyed to the responses of Plaintiff to specific requests within the Decker RFA and Decker FI, which constitute separate and particular sets of discovery. (Code Civ. Proc., § 2030.210, subds. (a) & (b) [responses to interrogatories]; Code Civ. Proc., § 2033.210, subds. (a) & (b) [same re admission requests].) Code of Civil Procedure section 2016.010 et seq. (the Civil Discovery Act) separately authorizes motions to compel further responses to specific sets of discovery. For these reasons, the Decker Discovery Motion effectively combines two motions brought under the Civil Discovery Act with respect to two separate sets of discovery directed to Plaintiff. (See Code Civ. Proc., § 1003 ["[e]very direction of a Court or judge, made or entered in writing, and not included in a judgment, is denominated an order. An application for an order is a motion".].)

The fee to file a motion applies to "[d]iscovery motions under Title 4 (commencing with Section 2016.010) of Part 4 of the Code of Civil Procedure." (Gov. Code, § 70617, subd. (a)(4).) "Regardless of whether each motion or matter is heard at a single hearing or at separate hearings, the filing fees required by subdivisions (a), (c), (d), and (e) apply separately to each motion or other paper filed." (Gov. Code, § 70617, subd. (f).) Because each request for an order compelling a party to provide further responses to a specific set of discovery is a separately authorized motion, a separate filing fee is required for each motion whether or not they are presented in a single notice with combined supporting papers or presented with separate notices and supporting papers.

Though a party is, generally, not prohibited from combining papers supporting some types of motions, such as Decker has done here in regard to the Decker Discovery Motion, there exists a procedural problem regarding the payment of filing fees for that motion. The Court's records reflect that Decker paid one filing fee for the two separately authorized motions effectively presented in the Decker Discovery Motion.

"Officers of the state, or of a county or judicial district, shall not perform any official services unless upon the payment of the fees prescribed by law for the performance of the services, except as provided in this chapter." (Gov. Code, § 6100.) "An unbroken line of decisions by our Supreme Court holds that it is mandatory for Court clerks to demand and receive the fee required by statute before documents or pleadings are filed." (Duran v. St. Luke's Hospital (2003) 114 Cal.App.4th 457, 459.) For all reasons discussed above, Decker must pay an additional filing fee if they want the Court to adjudicate the Decker Discovery Motion as to both the Decker RFA and the Decker FI at issue. As Decker has paid only one filing fee for two separately authorized motions as further discussed above, the Court will continue the hearing on the Decker Discovery Motion to permit Decker sufficient time to pay all required filing fees. Further, the Court will order Decker to file and serve a notice of payment of filing fees identifying each motion or motions for which those fees have been paid and for which adjudication is sought by Decker in regard to the Decker Discovery Motion.

Judges

Judge Thomas Anderle

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